

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8a-sg32-ci0y
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-3094

Comment on FR Doc # 2025-02305

Submitter Information

Name: Thomas Davdidson

General Comment

AI action plan commenting

Training AI on copyrighted works should not be considered fair use. Allowing companies to continue this practice would be disastrous both for the economy and for the individual lives of countless creatives across many fields. Further, I believe it is unethical, inconsistent with legal precedent, and would lead to further long-term consequences.

Consider what would happen if these AI models were to continue improving, and were legitimized by this "action plan." Profit-driven companies will not pay human artists, musicians, writers, etc. when AI can do the job quicker and cheaper. People who had something unique and valuable to contribute to society will no longer be able to do so; instead they will be forced to do unskilled work or be unable to find work at all. AI will not create new jobs anywhere near the scale of the jobs lost.

When the economic activity of human creative work disappears, that also means less tax revenue to fund the government.

It's only a matter of time before this extends to nearly all jobs, creative or otherwise, as businesses seek to cut costs with AI. What happens when the majority of Americans are unemployed?

Generative AI does not come up with its own ideas; it adds nothing new that it didn't take from humans. However, it will have fewer new ideas to consume when human artists are unable to make a living from their work and are, again, forced to either do unskilled work or suffer in poverty. Thus, over time I believe humankind will creatively and culturally stagnate.

Finally, I would like to address the criteria typically used to evaluate fair use today as I understand it.

1. Regarding the purpose of the use, it is commercial - a point against fair use.
2. Regarding the nature of the works used, many of them are novel, copyrighted, and otherwise not helping the case for fair use.
3. Regarding the portion of the work used, the nature of the technology makes this impossible to measure. However, it has been demonstrated that AI sometimes reproduces images it has been trained on nearly identically. I think this should be a point against fair use.
4. Regarding the effect of the use on the market for the original work, generative AI unquestionably devalues the works it is trained on. Why pay an artist when AI can recreate their style either cheaply or for free?

I hope given these factors, the economic consequences, and the potential degradation of what makes us uniquely human, you will agree that training AI on copyrighted works should not be considered fair use.

I am submitting this comment a second time to include the following:

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